



RICK SNYDER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENTAL QUALITY
CADILLAC DISTRICT OFFICE



KEITH CREAGH
DIRECTOR

February 1, 2016

CERTIFIED MAIL

Mr. Jeff Dietlin
Director of Utilities
City of Cadillac
200 North Lake Street
Cadillac, Michigan 49601

Dear Mr. Dietlin:

SUBJECT: Violation Notice – Cadillac WWTP
VN No. VN-006346

The Department of Environmental Quality (DEQ), Water Resources Division (WRD), has determined that the Cadillac WWTP is in violation of Part 31, Water Resources Protection, of the Natural Resources and Environmental Protection Act, 1994 PA 451, National Pollutant Discharge Elimination System (NPDES) Permit No. MI0020257, which was issued on September 27, 2013, effective on November 1, 2013.

The Water Resources Division has identified *and* Cadillac WWTP has reported the following: **Total Suspended Solids (TSS), Carbonaceous Biochemical Oxygen Demand (CBOD5), Ammonia as Nitrogen (N), Fecal Coliform and Total Phosphorus (P)** monitoring violations, occurring between October 2014 through June 2015. These monitoring results are violations of your permit.

DATE	PARAMETER	UNITS	EFFLUENT LIMITATION		REPORTED VALUES	
			Daily Maximum	Monthly Average	Daily Maximum	Monthly Average
10/21/2014	TSS Max 7-day ave	mg/L	30	x	31	x
10/21/2014	CBOD5	mg/L	10	x	12.15	x
10/22/2014	TSS Max 7-day ave	mg/L	30	x	32	x
10/22/2014	CBOD5	mg/L	10	x	12.2	x
10/23/2014	TSS Max 7-day ave	mg/L	30	x	51	x
10/23/2014	CBOD5	mg/L	10	x	12.15	x
10/24/2014	CBOD5	mg/L	10	x	11.9	x
10/27/2014	TSS Max 7-day ave	mg/L	30	x	66.5	x
10/27/2014	TSS Max 7-day ave	lb/day	800	x	1155.98	x
10/27/2014	CBOD5	mg/L	10	x	11.85	x

10/27/2014	Fecal Coliform max 7-day gm	#/100 ml	400	x	1380	x
10/28/2014	TSS Max 7-day ave	mg/L	30	x	88	x
10/28/2014	TSS Max 7-day ave	lb/day	800	x	1429.28	x
10/28/2014	CBOD5	mg/L	10	x	11.7	x
10/29/2014	CBOD5	mg/L	10	x	17.4	x
10/29/2014	Fecal Coliform max 7-day gm	#/100 ml	400	x	580	x
10/30/2014	CBOD5	mg/L	10	x	13.8	x
10/31/2014	TSS Max 7-day ave	mg/L	30	x	56	x
10/31/2014	CBOD5	lb/day	270	x	273.123	x
10/31/2014	CBOD5	mg/L	10	x	21.45	x
10/31/2014	Ammonia as (N)	mg/L	2	x	2.34	x
10/31/2014	Fecal Coliform max 7-day gm	#/100 ml	400	x	560	x
Oct-14	CBOD5	mg/L	x	7	x	8.34
Oct-14	Total Phosphorus	mg/L	x	0.5	x	0.73
Oct-14	Fecal Coliform max 7-day gm	#/100 ml	400	x	654	x
11/6/2014	Ammonia as (N)	mg/L	2	x	3.41	x
11/6/2014	Ammonia as (N) 7-day ave	lb/day	53	x	57.39	x
11/10/2014	Ammonia as (N)	mg/L	2	x	4.08	x
11/10/2014	Ammonia as (N) 7-day ave	lb/day	53	x	63.89	x
11/11/2014	Ammonia as (N)	mg/L	2	x	5.13	x
11/11/2014	Ammonia as (N) 7-day ave	lb/day	53	x	80.16	x
11/24/2014	CBOD5	mg/L	10	x	12	x
11/26/2014	CBOD5	mg/L	10	x	11.4	x
11/27/2014	Ammonia as (N)	mg/L	2	x	2.26	x
Nov-14	Ammonia	lb/day	x	24	x	26
Nov-14		mg/L	x	0.9	x	1.7
1/9/2015	CBOD5	mg/L	34	x	48	x
1/16/2015	CBOD5	mg/L	34	x	40.2	x
1/21/2015	CBOD5	mg/L	34	x	36	x
2/23/2015	TSS Max 7-day ave	mg/L	45	x	66	x
2/23/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	500	x

Feb-15	Ammonia as (N) 7-day ave	lb/day	x	99	x	108.2
Feb-15	Ammonia as (N)	mg/L	x	3.7	x	6.8
Feb-15	TSS % Removal	%	x	85	x	64.9
3/30/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	430	x
Mar-15	Ammonia as (N) 7-day ave	lb/day	x	99	140.2	x
Mar-15	Ammonia as (N)	mg/L	x	3.7	7.3	x
4/3/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	580	x
4/17/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	1960	x
4/22/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	1320	x
4/23/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	700	x
4/24/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	450	x
4/29/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	450	x
Apr-15	Ammonia	mg/L	x	4.8	x	6.3
5/1/2015	CBOD5	mg/L	10	x	12	x
5/1/2015	Ammonia as (N) 7-day ave	lb/day	53	x	126.73	x
5/1/2015	Ammonia as (N)	mg/L	2	x	8.24	x
5/1/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	590	x
5/4/2015	CBOD5	mg/L	10	x	12.8	x
5/4/2015	Ammonia as (N)	mg/L	2	x	2.94	x
5/5/2015	Ammonia as (N) 7-day ave	lb/day	53	x	54.33	x
5/5/2015	Ammonia as (N)	mg/L	2	x	3.36	x
5/6/2015	Ammonia as (N)	mg/L	2	x	2.84	x
5/12/2015	Ammonia as (N) 7-day ave	lb/day	53	x	62.34	x
5/12/2015	Ammonia as (N)	mg/L	2	x	4.05	x
5/12/2015	pH	min	6.5	x	6.4	x
5/13/2015	Ammonia as (N)	mg/L	2	x	2.76	x
5/19/2015	TSS Max 7-day ave	mg/L	30	x	54.5	x

5/19/2015	TSS Max 7-day ave	lb/day	800	x	801.7	x
5/19/2015	CBOD5	lb/day	270	x	308.91	x
5/19/2015	CBOD5	mg/L	10	x	21	x
5/19/2015	Ammonia as (N)	mg/L	2	x	2.46	x
5/20/2015	CBOD5	mg/L	10	x	12.9	x
5/20/2015	Ammonia as (N)	mg/L	2	x	3.08	x
5/21/2015	TSS Max 7-day ave	mg/L	30	x	68	x
5/21/2015	TSS Max 7-day ave	lb/day	800	x	1069.11	x
5/21/2015	CBOD5	lb/day	270	x	339.6	x
5/21/2015	CBOD5	mg/L	10	x	21.6	x
5/21/2015	Ammonia as (N) 7-day ave	lb/day	53	x	77.35	x
5/21/2015	Ammonia as (N)	mg/L	2	x	4.92	x
5/22/2015	TSS Max 7-day ave	mg/L	30	x	87	x
5/22/2015	TSS Max 7-day ave	lb/day	800	x	1248.04	x
5/22/2015	CBOD5	lb/day	270	x	309.86	x
5/22/2015	CBOD5	mg/L	10	x	21.6	x
5/22/2015	Ammonia as (N) 7-day ave	lb/day	53	x	66.56	x
5/22/2015	Ammonia as (N)	mg/L	2	x	4.64	x
5/25/2015	TSS Max 7-day ave	mg/L	30	x	199	x
5/25/2015	TSS Max 7-day ave	lb/day	800	x	3337.03	x
5/25/2015	CBOD5	lb/day	270	x	352.15	x
5/25/2015	CBOD5	mg/L	10	x	21	x
5/25/2015	Ammonia as (N)	mg/L	2	x	2.87	x
5/26/2015	TSS Max 7-day ave	mg/L	30	x	60	x
5/26/2015	TSS Max 7-day ave	lb/day	800	x	972.82	x
5/26/2015	CBOD5	lb/day	270	x	289.41	x
5/26/2015	CBOD5	mg/L	10	x	17.9	x
5/26/2015	Ammonia as (N)	mg/L	2	x	2.28	x
5/27/2015	CBOD5	mg/L	10	x	11.4	x
5/28/2015	CBOD5	mg/L	10	x	12	x
5/28/2015	Ammonia as (N) 7-day ave	lb/day	53	x	55.76	x

5/28/2015	Ammonia as (N)	mg/L	2	x	3.4	x
5/29/2015	CBOD5	lb/day	270	x	362.76	x
5/29/2015	CBOD5	mg/L	10	x	21	x
5/29/2015	Ammonia as (N) 7-day ave	lb/day	53	x	86.37	x
5/29/2015	Ammonia as (N)	mg/L	2	x	5	x
May-15	TSS Monthly Ave. Max	mg/L	x	20	x	28.7
May-15	CBOD5 Monthly Ave. Max	lb/day	x	190	x	190.47
May-15	CBOD5 Monthly Ave. Max	mg/L	x	7	x	11.87
May-15	Ammonia Monthly Ave. Max	lb/day	x	24	x	47.2
May-15	Ammonia Monthly Ave. Max	mg/L	x	0.9	x	3
6/1/2015	TSS Max 7-day ave	mg/L	30	x	89	x
6/1/2015	TSS Max 7-day ave	lb/day	800	x	1407.73	x
6/1/2015	CBOD5	mg/L	10	x	21.8	x
6/1/2015	CBOD5	lb/day	270	x	344.02	x
6/1/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	1250	x
6/2/2015	TSS Max 7-day ave	mg/L	30	x	52	x
6/2/2015	TSS Max 7-day ave	lb/day	800	x	858.53	x
6/2/2015	CBOD5	mg/L	10	x	15.5	x
6/3/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	640	x
6/4/2015	TSS Max 7-day ave	mg/L	30	x	68	x
6/4/2015	TSS Max 7-day ave	lb/day	800	x	1135.94	x
6/4/2015	CBOD5	mg/L	10	x	20.7	x
6/4/2015	CBOD5	lb/day	270	x	345.79	x
6/4/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	1000	x
6/8/2015	TSS Max 7-day ave	mg/L	30	x	67	x
6/8/2015	TSS Max 7-day ave	lb/day	800	x	1112.07	x
6/8/2015	CBOD5	mg/L	10	x	20.7	x

6/8/2015	CBOD5	lb/day	270	x	343.58	x
6/8/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	710	x
6/9/2015	TSS Max 7-day ave	mg/L	30	x	41	x
6/9/2015	CBOD5	mg/L	10	x	14.1	x
6/15/2015	Ammonia as (N)	mg/L	2	x	24.2	x
6/15/2015	Ammonia as (N) 7-day ave	lb/day	53	x	428.39	x
6/15/2015	Fecal Coliform max 7-day gm	#/100 ml	400	x	3600	x
6/16/2015	TSS Max 7-day ave	mg/L	30	x	48	x
6/16/2015	TSS Max 7-day ave	lb/day	800	x	818.53	x
6/16/2015	Ammonia as (N)	mg/L	2	x	2.96	x
6/16/2015	CBOD5	mg/L	10	x	19	x
6/16/2015	CBOD5	lb/day	270	x	324	x
6/18/2015	CBOD5	mg/L	10	x	26.3	x
6/18/2015	CBOD5	lb/day	270	x	409.1	x
6/22/2015	CBOD5	mg/L	10	x	18.3	x
6/22/2015	CBOD5	lb/day	270	x	290.11	x
6/23/2015	CBOD5	mg/L	10	x	29.1	x
6/23/2015	CBOD5	lb/day	270	x	394.34	x
Jun-15	TSS Monthly Ave. Max	mg/L	x	20	x	25.9
Jun-15	CBOD5 Monthly Ave. Max	lb/day	x	190	x	200.1
Jun-15	CBOD5 Monthly Ave. Max	mg/L	x	7	x	12.4
Jun-15	Ammonia Monthly Ave. Max	lb/day	x	24	x	29.2
Jun-15	Ammonia Monthly Ave. Max	mg/L	x	0.9	x	1.7
Jun-15	Fecal Coliform max 7-day gm	#/100 ml	x	400	x	606.16
*This list reflects only those violations found during a visual review of DMRs dating from October 2014 through June 2015.						

The violation(s) identified in this Violation Notice have ceased. The violations identified in the Violation Notice are violations of NPDES Permit No. MI0020257. **Cadillac WWTP should take immediate action to achieve and maintain compliance** with the terms and conditions of NPDES Permit No. MI0020257.

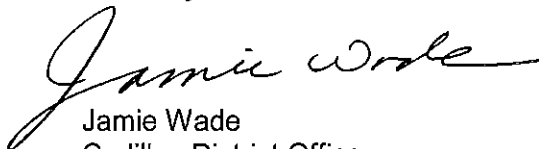
Please submit a response to this office by March 1, 2016. At a minimum, the response shall include:

1. A description of the discharge and cause of non-compliance. Please review and comment on any influent characterization that may provide some explanation of the difficulty the plant had maintaining compliance within the period stated above.
2. The period of non-compliance including exact dates and times.
3. Steps that are being taken to reduce, eliminate and prevent recurrence of the noncomplying discharge.
4. Please provide documentation that the current waste water operator in charge of the plant has the proper certification level. The Cadillac WWTP is classified as a Class A facility (see classification letter attached).
5. Please provide an explanation as to why written notification of exceedances was not provided for each occurrence as required in the NPDES Permit No. MI0020257; Part II, Section C. Reporting Requirements, 6. Noncompliance Notification.
6. Please fill out and provide the operator designation form that was provided to you with the facility classification letter dated October 22, 2014 (also provided with this letter).

If you have any factual information you would like us to consider regarding the violations identified in this Notice, please provide them with your written response.

We anticipate and appreciate your cooperation in resolving this matter. Should you require further information regarding this Notice or if you would like to arrange a meeting to discuss it, please contact me.

Sincerely,



Jamie Wade
Cadillac District Office
Water Resources Division
231-876-4478

JW:sh

Enclosures:

1. October 22, 2014 Facility Classification Letter
2. Facility Operator Designation Form
3. Permit No. MI0020257 Excerpt
 - a. Part II, Section C., 6. Noncompliance Notification
 - b. Part II, Section D., 2. Operator Certification

cc: Mr. Marcus Peccia, Cadillac, City Manager
Ms. Julie Lowe, Gaylord Office, WRD, e-mail
Ms. Christine Veldkamp, Grand Rapids Office, WRD, e-mail
Mr. Barry Selden, Enforcement Unit, WRD, e-mail



RICK SNYDER
GOVERNOR

STATE OF MICHIGAN
DEPARTMENT OF ENVIRONMENTAL QUALITY
CADILLAC DISTRICT OFFICE



DAN WYANT
DIRECTOR

October 22, 2014



Mr. Jeffrey Dietlin, Water Resources Supervisor
Cadillac WWTP
200 N. Lake Street
Cadillac, Michigan 49601

Dear Mr. Dietlin:

SUBJECT: Notice of Classification
Wastewater Treatment Facility that Services the Public
NPDES Permit No. MI0020257
Cadillac WWTP, CLASS A

The Michigan Department of Environmental Quality (DEQ), Water Resources Division (WRD), has responsibility for the classification of government owned wastewater treatment facilities or other facilities that serve the public in accordance with Part 41, Sewerage Systems, of the Natural Resources and Environmental Protection Act, 1994 PA 451, as amended (NREPA). Facilities that have already been classified are periodically reviewed to ensure that the existing facility classification(s) is still appropriate. This classification letter is a result of that review.

The plans for your existing wastewater treatment facility located at 1121 Plett Road, Cadillac, Michigan 49601, have been reviewed by the WRD for classification and are based primarily on the population served; the size, location and type of treatment facility; the character and volume of wastes treated; and the use and nature of the waters of the state receiving the effluent. However, treatment facilities in any size group may be placed in a higher classification when any of the following special conditions exist.

- Special features of design or characteristics more difficult to operate than usual.
- A particularly difficult type of sewage (wastewater characteristics).
- Stream conditions (receiving waters).

After review of these factors, the WRD has determined that the appropriate classification of your wastewater treatment facility is Class "A." The unique conditions which justify this classification are: the in-place IPP program, activated sludge, RBC treatment, cloth media filtration, UV disinfection, and discharge to a trout stream.

If you disagree with this classification, you may request a hearing before the Director of the DEQ or his designated representative, to present evidence to support your position. After the hearing, the DEQ will determine the proper waste treatment or control facility classification.

You are required by law to designate a superintendent, who shall be a properly certified operator to be in responsible charge of the day-to-day operation of your facility. Please notify the Cadillac District Office, Water Resources Division, in writing within 60 days, with the name, address and telephone number of the designated superintendent. A designation form is enclosed for your convenience. You may replace the superintendent with another properly

Mr. Jeffrey Dietlin
Cadillac WWTP

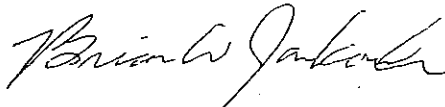
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October 22, 2014

certified operator at any time and shall notify the WRD in writing within ten (10) days after the replacement.

Should you require further information, please contact Mr. Jeremy (Jamie) Wade, P.E., Environmental Engineer, at 231-876-4478, wadej@michigan.gov, or DEQ-WRD, Cadillac District Office, Department of Environmental Quality, 120 West Chapin Street, Cadillac, Michigan 49601-2158; or you may contact me.

Sincerely,



Brian W. Jankowski
Cadillac District Supervisor
Water Resources Division
231-876-4475
jankowskib@michigan.gov

Enclosure

cc: Mr. Hamid Rahbarnoohi, Superintendent
Operator Training and Certification Unit, WRD (via email)

DATE: _____

TO: Michigan Department of Environmental Quality
Water Resources Division

ATTN: Brian Jankowski, Supervisor
Cadillac District Office

I hereby designate _____ as the responsible operator in charge of the waste treatment facilities at _____, discharge Permit No. _____. He/she has met the requirements of the Department and has been properly certified. The Certificate No. is _____, and the license classification(s) are _____. The names, certificate number, and license classification(s) of other operators who are employed at the above facilities are listed below.

<u>Name</u>	<u>Certificate No.</u>	<u>License Classification(s)</u>
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____
_____	_____	_____

Name

Title

Company

Send this form to: Brian Jankowski, Supervisor
Water Resources Division
Cadillac District Office
Department of Environmental Quality
120 West Chapin Street
Cadillac, MI 49601

PART II

Section C. Reporting Requirements

6. Noncompliance Notification

Compliance with all applicable requirements set forth in the Federal Act, Parts 31 and 41 of the Michigan Act, and related regulations and rules is required. All instances of noncompliance shall be reported as follows:

- a. 24-hour reporting - Any noncompliance which may endanger health or the environment (including maximum and/or minimum daily concentration discharge limitation exceedances) shall be reported, verbally, within 24 hours from the time the permittee becomes aware of the noncompliance. A written submission shall also be provided within five (5) days.
- b. other reporting - The permittee shall report, in writing, all other instances of noncompliance not described in a. above at the time monitoring reports are submitted; or, in the case of retained self-monitoring, within five (5) days from the time the permittee becomes aware of the noncompliance.

Written reporting shall include: 1) a description of the discharge and cause of noncompliance; and 2) the period of noncompliance, including exact dates and times; or, if not corrected, the anticipated time the noncompliance is expected to continue, and the steps taken to reduce, eliminate and prevent recurrence of the noncomplying discharge.

7. Spill Notification

The permittee shall immediately report any release of any polluting material which occurs to the surface waters or groundwaters of the state, unless the permittee has determined that the release is not in excess of the threshold reporting quantities specified in the Part 5 Rules (Rules 324.2001 through 324.2009 of the Michigan Administrative Code), by calling the Department at the number indicated on the second page of this permit, or if the notice is provided after regular working hours call the Department's 24-hour Pollution Emergency Alerting System telephone number, 1-800-292-4706 (calls from out-of-state dial 1-517-373-7660).

Within ten (10) days of the release, the permittee shall submit to the Department a full written explanation as to the cause of the release, the discovery of the release, response (clean-up and/or recovery) measures taken, and preventative measures taken or a schedule for completion of measures to be taken to prevent reoccurrence of similar releases.

8. Upset Noncompliance Notification

If a process "upset" (defined as an exceptional incident in which there is unintentional and temporary noncompliance with technology based permit effluent limitations because of factors beyond the reasonable control of the permittee) has occurred, the permittee who wishes to establish the affirmative defense of upset, shall notify the Department by telephone within 24-hours of becoming aware of such conditions; and within five (5) days, provide in writing, the following information:

- a. that an upset occurred and that the permittee can identify the specific cause(s) of the upset;
- b. that the permitted wastewater treatment facility was, at the time, being properly operated and maintained (note that an upset does not include noncompliance to the extent caused by operational error, improperly designed treatment facilities, inadequate treatment facilities, lack of preventive maintenance, or careless or improper operation); and
- c. that the permittee has specified and taken action on all responsible steps to minimize or correct any adverse impact in the environment resulting from noncompliance with this permit.

No determination made during administrative review of claims that noncompliance was caused by upset, and before an action for noncompliance, is final administrative action subject to judicial review.

In any enforcement proceedings, the permittee, seeking to establish the occurrence of an upset, has the burden of proof.

PART II**Section D. Management Responsibilities****1. Duty to Comply**

All discharges authorized herein shall be consistent with the terms and conditions of this permit. The discharge of any pollutant identified in this permit more frequently than or at a level in excess of that authorized shall constitute a violation of the permit.

It is the duty of the permittee to comply with all the terms and conditions of this permit. Any noncompliance with the Effluent Limitations, Special Conditions, or terms of this permit constitutes a violation of the Michigan Act and/or the Federal Act and constitutes grounds for enforcement action; for permit termination, revocation and reissuance, or modification; or denial of an application for permit renewal.

It shall not be a defense for a permittee in an enforcement action that it would have been necessary to halt or reduce the permitted activity in order to maintain compliance with the conditions of this permit.

2. Operator Certification

The permittee shall have the waste treatment facilities under direct supervision of an operator certified at the appropriate level for the facility certification by the Department, as required by Sections 3110 and 4104 of the Michigan Act. Permittees authorized to discharge storm water shall have the storm water treatment and/or control measures under direct supervision of a storm water operator certified by the Department, as required by Section 3110 of the Michigan Act.

3. Facilities Operation

The permittee shall, at all times, properly operate and maintain all treatment or control facilities or systems installed or used by the permittee to achieve compliance with the terms and conditions of this permit. Proper operation and maintenance includes adequate laboratory controls and appropriate quality assurance procedures.

4. Power Failures

In order to maintain compliance with the effluent limitations of this permit and prevent unauthorized discharges, the permittee shall either:

- a. provide an alternative power source sufficient to operate facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit; or
- b. upon the reduction, loss, or failure of one or more of the primary sources of power to facilities utilized by the permittee to maintain compliance with the effluent limitations and conditions of this permit, the permittee shall halt, reduce or otherwise control production and/or all discharge in order to maintain compliance with the effluent limitations and conditions of this permit.

5. Adverse Impact

The permittee shall take all reasonable steps to minimize or prevent any adverse impact to the surface waters or groundwaters of the state resulting from noncompliance with any effluent limitation specified in this permit including, but not limited to, such accelerated or additional monitoring as necessary to determine the nature and impact of the discharge in noncompliance.